

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

LATEEF WASHINGTON,

Plaintiff,

-against-

THE CITY OF NEW YORK; NYPD P.O. MICHELLE
GIGLIO SHIELD NO 18126; NYPD P.O. JOHN/JANE
DOES # 1-10; all of the above individual
Defendants, including named are sued in their
individual and official capacities,

Defendants.

----- X

YOU ARE HEREBY SUMMONED to appear and to answer the Complaint in this action and to serve a copy of your answer on Plaintiff's attorney within twenty (20) days of the service of this Summons, exclusive of the day of service (or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York), and in case of your failure to appear or to answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: NEW YORK, NY
JANUARY 23, 2020



O. WILLIAMS IGBOKWE, ESQ.
LAW OFFICE OF WILLIAM IGBOKWE
Attorney for Plaintiffs
77 WATER STREET
New York, New York 10005
347-467-4674



MARTIN E. ADAMS, ESQ.
ADAMS & COMMISSIONG LLP
Attorney for Plaintiffs
65 Broadway Suite 1603
New York, NY 10006-2577
212-430-6590

DEFENDANTS ADDRESS:

The City of New York
100 Church Street
New York, NY 10007

NYPD P.O. GIGLIO, SHIELD NO 18126
NYPD P.O. JOHN/JANE DOES # 1-10
77TH Precinct
127 UTICA Avenue
Brooklyn, NY 11213

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

LATEEF WASHINGTON,

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK; NYPD P.O. MICHELLE
GIGLIO SHIELD NO 18126; NYPD P.O.
JOHN/JANE DOES # 1-10; all of the above
individual Defendants, including named
are sued in their individual and official
capacities,

Index No: _____

Basis of Venue:

Location of incident:
Kings County

Jury Trial Demanded

Defendants.

----- X

The Plaintiff, LATEEF WASHINGTON, by and through
counsel LAW OFFICE OF WILLIAM IGBOKWE AND ADAMS & COMMISSIONG
LLP, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort
action in which Plaintiff seeks relief for the violation of his
rights secured by the laws of the State of New York; New York
State Constitution; 42 U.S.C. §§ 1983 and 1988; and the Fourth,
Sixth, and Fourteenth Amendments to the United States
Constitution. Plaintiff's claims arise from an incident that
arose on or about October 29, 2018. During the incident, the
City of New York, and members of the New York City Police
Department ("NYPD") subjected Plaintiff to, among other things,

unlawful search and seizure, false arrest and imprisonment, malicious prosecution, negligence, failure to intervene, negligent supervision, hiring, monitoring, training and retention of unfit employees, intentional and negligent infliction of emotional distress, conversion, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages from the individual Defendants, compensatory damages from the municipal Defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. Within 90 days of the conclusion of the incidents alleged in this complaint, Plaintiff served upon Defendant City of New York a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damages or injuries claimed.

3. More than 30 days have elapsed since Plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the Defendant has neglected and/or refused to make any adjustment and/or payment.

4. This action is being commenced within one year and ninety days of the date of the occurrence herein.

5. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State New York, Kings County.

6. Plaintiff seeks compensatory and punitive damages from the individual Defendants, compensatory damages from the municipal Defendant, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

PARTIES

7. Plaintiff Lateef Washington is an African American Male, a resident of the State of New York, Kings County.

8. At all times alleged herein, Defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated Plaintiff's rights as described herein.

9. At all times alleged herein, Defendants NYPD P.O. Giglio and P.O. John or Jane Does # 1-10 were New York City Police Officers employed with the 77th Precinct, located in

Kings County, New York or other as yet unknown NYPD assignment, who violated Plaintiff's rights as described herein.

10. The individual Defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

11. On October 29, 2018, at and in the vicinity of Dean Street and Franklin Avenue, Brooklyn, New York, several police officers operating from the 77TH Precinct, including upon information and belief, NYPD P.O. Giglio, and NYPD P.O. John or Jane Does # 1-10, at times acting in concert, and at times acting independently, committed the following illegal acts against Plaintiff.

12. On October 29, 2018, at approximately 6:30 p.m., at and around the vicinity of Dean Street and Franklin Avenue, Brooklyn, New York, Defendants, without either consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that Plaintiff had committed a crime unlawfully arrested Plaintiff.

13. Plaintiff was driving a 2019 Cadillac XTS upon Franklin Avenue close to the intersection of Pacific Street where Plaintiff was tailed by P.O Giglio and NYPD P.O. John and Jane Does # 1 - 10, and was subsequently pulled over in the

vicinity of Dean Street and Franklin Avenue, Brooklyn, New York, although Plaintiff had not violated a traffic ordinance.

14. P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, approached the Plaintiff and requested for the Plaintiff to exit the vehicle.

15. When the Plaintiff exited the vehicle, P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, without consent, probable cause for an arrest, or warrant, subjected Plaintiff to a physical search of his person.

16. No weapons or contraband were found upon Plaintiff's person.

17. P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, further without consent, probable cause for arrest, or warrant, searched the Plaintiff's vehicle which included but was not limited to the inside of the vehicle, all closed compartments, and the trunk of the vehicle.

18. P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, removed Plaintiff's leather duffel bag from the trunk of his vehicle, unzipped the duffel bag which prior to the search was completely zipped closed, and searched said duffel bag.

19. P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, removed four (4) plastic wrapped and sealed Apple iPhone boxes from said duffel bag, and improperly and without authority

seized said iPhones from Plaintiff which contained one (1) Apple iPhone per box, and which were gifts Plaintiff acquired for family members.

20. P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, further unsealed the four (4) plastic wrapped and sealed Apple iPhone boxes, and searched the boxes and removed said iPhones from the boxes and ran further searches and inspections on said iPhones.

21. P.O. Giglio and NYPD P.O. John or Jane Does # 1-10, placed Plaintiff under arrest, placed him in a police car and took him to the 77th precinct where his arrest was processed.

22. During this time, in order to cover up their illegal actions, the Defendant officers, pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that Plaintiff had committed various crimes.

23. The Defendants made these false allegations, despite the fact that they had no evidence that Plaintiff had committed a crime, to cover up their misconduct, to meet productivity goals and quotas, and to justify overtime expenditures.

24. However, because there was no basis to arrest and prosecute the Plaintiff, at the arraignment of the Plaintiff, Kings County Judge Marguerite Dougherty immediately dismissed the only misdemeanor counts on the complaint, and subsequently on August 12, 2019, the Kings County District Attorney adjourned the case in contemplation of dismissal with immediate sealing which was in effect a dismissal of the government's case against the Plaintiff.

25. On August 13, 2019, after the Kings County District Attorney's dismissal of the case against the Plaintiff, the Plaintiff went to the NYPD property clerk to retrieve the four (4) Apple iPhones which were confiscated by the NYPD, yet the NYPD refused to return said iPhones to the Plaintiff.

26. The individual Defendants acted in concert committing the above-described illegal acts toward Plaintiff.

27. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

28. At no time prior to, during or after the above incidents were the individual Defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that Plaintiff had

violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

29. The Defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said Defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said Defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his rights.

30. As a direct and proximate result of Defendants' actions, Plaintiff experienced personal injuries, pain and suffering, fear, an invasion of privacy, conversion of property, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

31. Plaintiff is entitled to receive punitive damages from the individual Defendants because the individual Defendants' actions were motivated by extreme recklessness and indifference to Plaintiff's rights.

32. Upon information and belief, the unlawful actions against Plaintiff were also based on profiling.

FIRST CLAIM**(FALSE ARREST UNDER FEDERAL LAW)**

33. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

34. Defendants falsely arrested Plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that Plaintiff had committed a crime.

35. Accordingly, Defendants are liable to Plaintiff for false arrest under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

SECOND CLAIM**(FALSE ARREST UNDER STATE LAW)**

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. Defendants falsely arrested Plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that Plaintiff had committed a crime.

38. Accordingly, Defendants are liable to Plaintiff for false arrest under New York State law.

THIRD CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER FEDERAL LAW)**

39. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

40. Defendants unlawfully stopped and searched Plaintiff, and Plaintiff's vehicle without cause, a warrant, or consent.

41. Accordingly, Defendants are liable to Plaintiff for unlawful search and seizure under 42 U.S.C. § 1983; and the Fourth and Fifth Amendments to the United States Constitution.

FOURTH CLAIM**(UNLAWFUL SEARCH AND SEIZURE UNDER STATE LAW)**

42. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

43. Defendants unlawfully stopped and searched Plaintiff, and Plaintiff's vehicle without cause, a warrant, or consent.

44. Accordingly, Defendants are liable to Plaintiff for unlawful search and seizure under New York State law.

FIFTH CLAIM**(FAILURE TO INTERVENE)**

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. Defendants had a reasonable opportunity to prevent the violations of Plaintiff's constitutional rights, but they failed to intervene.

47. Accordingly, the Defendants are liable to Plaintiff for failing to intervene to prevent the violation of Plaintiff's constitutional rights.

SIXTH CLAIM

(MALICIOUS PROSECUTION UNDER FEDERAL LAW)

48. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

49. The individual defendants are liable to plaintiff for malicious prosecution because prior to any grand action, with intent, knowledge, and malice, the defendants initiated a malicious prosecution against plaintiff by drafting and signing a sworn criminal court complaint and police reports that provided false information to the court, alleging plaintiff had committed various crimes.

50. The individual defendants lacked probable cause to believe the above-stated malicious prosecution could succeed.

51. The individual defendants initiated the above-stated malicious prosecution to cover up their illegal and unconstitutional conduct.

52. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

53. Accordingly, Defendants are liable to Plaintiff for unlawful search and seizure under 42 U.S.C. § 1983 and the United States Constitution.

SEVENTH CLAIM

(MALCIOUS PROSECUTION UNDER STATE LAW)

54. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

55. Defendants are liable to plaintiff for malicious prosecution because, pursuant to a conspiracy and acting with malice, the defendants initiated a malicious prosecution against plaintiff by knowingly, intentionally, and maliciously providing false statements to prosecutors and/or the criminal court(s), which alleged plaintiff had committed various crimes; and based upon these false statements, prosecutors prosecuted plaintiff until the case against plaintiff were dismissed in their entirety.

56. The individual defendants lacked probable cause to believe the above-stated malicious prosecution(s) could succeed.

57. The individual defendants acted to cover up their illegal and unconstitutional conduct by initiating the above-stated malicious prosecution(s).

58. Accordingly, Defendants are liable to Plaintiff for malicious prosecution under New York State law.

EIGHTH CLAIM

(NEGLIGENCE)

59. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

60. Defendants are liable to Plaintiff because Defendants owed Plaintiff a cognizable duty of care as a matter of law, and breached that duty.

NINTH CLAIM

**(NEGLIGENT SUPERVISION, HIRING, MONITORING,
TRAINING, AND RETENTION OF UNFIT EMPLOYEES)**

61. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

62. Defendant City of New York is liable to Plaintiff because the occurrence and injuries sustained by Plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of Plaintiff contributing thereto, specifically, the negligent and reckless

manner in which said Defendant hired, trained, supervised, controlled, managed, maintained, inspected, and retained its Police Officers.

TENTH CLAIM

(INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS)

63. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

64. That by virtue of the occurrence and Defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon Plaintiff.

65. The Defendants' actions against Plaintiff were extreme and outrageous and caused Plaintiff severe emotional distress.

66. The Defendants breached a duty owed to Plaintiff that either unreasonably endangered Plaintiff's physical safety, or caused Plaintiff to fear for his own safety.

ELEVENTH CLAIM

(CONVERSION)

67. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

68. The Plaintiff has title and the right to possess the four (4) iPhones seized and equipment. Defendants' actions in seizing the four (4) iPhones and failing/refusing to return

said iPhones when Plaintiff requested their return on August 13, 2018 constitutes conversion.

69. Accordingly, Plaintiff suffered loss and damage as a result of Defendants' actions and thus the Defendants are liable to Plaintiff for conversion under New York State law.

TWELTH CLAIM

(REPLEVIN)

70. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

71. The Plaintiff has title and right to possess the four (4) iPhones. Defendants' actions in seizing the iPhones from Plaintiff, and refusing to return said iPhones to the Plaintiff when Plaintiff requested their return on August 13, 2018.

72. Accordingly, Plaintiff suffered loss and damage as a result of Defendants' actions and is the basis for replevin relief under New York State law.

THIRTEENTH CLAIM

(MONELL CLAIM)

73. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

74. Defendant City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by Plaintiff.

75. Defendant City of New York through the NYPD and its officers, committed the following unconstitutional practices, customs and policies against Plaintiff: (1) unlawfully stopping and searching innocent persons; (2) wrongfully arresting innocent persons in order to meet productivity goals; (3) wrongfully arresting individuals based on pretexts and profiling; and (4) fabricating evidence against innocent persons.

76. Upon information and belief, Defendant City of New York, at all relevant times, was aware that the Defendants were unfit officers who have previously committed the acts alleged herein, have a propensity for unconstitutional conduct, or have been inadequately trained.

77. Nevertheless, Defendant City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the individual Defendants and improperly retained and utilized them. Moreover, upon information and belief, Defendant City of New York failed to adequately investigate prior complaints filed against the individual Defendants.

78. Further, Defendant City of New York was aware prior to the incident that the individual Defendants (in

continuation of its illegal custom, practice and/or policy) would stop, arrest and prosecute innocent individuals, based on pretexts and false evidence.

79. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct involving the individual Defendants, placing the Defendant City of New York on notice of the individual Defendants' propensity to violate the rights of individuals.

80. In addition to frequently violating the civil rights of countless residents of New York City, numerous members of the NYPD commit crimes. Officers have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, perjury, corruption, theft, selling narcotics, smuggling firearms, robbery, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence. In fact, former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state courts and served time in federal prison. In 2011, Brooklyn South Narcotics Officer Jerry Bowens was convicted of murder and attempted murder in Supreme Court, Kings County, while under indictment for corruption and is presently serving a life sentence. In 2011, Police Officer William Eiseman and his

subordinate Police Officer Michael Carsey were convicted of felonies in Supreme Court, New York County, for lying under oath, filing false information to obtain search warrants and performing illegal searches of vehicles and apartments. In 2012, New York City Police Officer Michael Pena was convicted in Supreme Court, New York County, of raping and sexually assaulting a woman at gunpoint and is presently serving a sentence of 75 years to life.

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

82. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

83. The City's failure to act resulted in the violation of Plaintiff's constitutional rights as described herein.

FOURTEENTH CLAIM
(RESPONDEAT SUPERIOR)

84. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

85. The individual Defendants were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against Plaintiff.

86. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

WHEREFORE, Plaintiff demands a jury trial and the following relief jointly and severally against the Defendants:

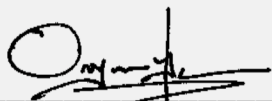
- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees, pursuant to 42 U.S.C. § 1988; and
- d. Such other and further relief as this Court may deem just and proper, including injunctive and declaratory relief.

DATED: New York, New York
January 23, 2020

LAW OFFICE OF WILLIAM IGBOKWE,
Attorney for Plaintiff
77 Water Street, 8th Floor
New York, New York 10005
(347) 467 - 4674

will@iwlaws.com

By:



O. WILLIAMS IGBOKWE, ESQ

ADAMS & COMMISSIONG LLP
Attorney for Plaintiff
65 Broadway Suite 1603
New York, NY 10006-2577
212-430-6590

martin@amcmlaw.com

By:



MARTIN E. ADAMS, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

LATEEF WASHINGTON,

Plaintiff,

VERIFICATION

Index No: _____

-against-

Date Filed: _____

THE CITY OF NEW YORK; NYPD P.O. MICHELLE GIGLIO
SHIELD NO 18126; NYPD P.O. JOHN/JANE DOES # 1-10;
all of the above individual Defendants, including
named are sued in their individual and official
capacities,

Defendants.

----- X

STATE OF NEW YORK

SS.:

COUNTY OF NEW YORK

O. Williams Igbokwe, Esq, an attorney-at-law, duly admitted to practice law in the State of New York, hereby affirms pursuant to the C.P.L.R. and subscribing as true under the penalties of perjury as follows:

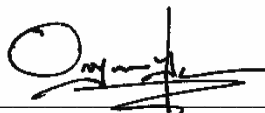
That the Affirmant is a member of the law firm Adams & Commissiong LLP, the attorneys of record for the Plaintiff in the above entitled action.

That the Affirmant has read the foregoing complaint and knows the contents thereof; that the same is true to his knowledge, except as to the matters stated to be alleged upon information and belief, and that as to those matters he believes them to be true.

That the reason why this verification is made by Affirmant instead of the Plaintiff is because the Plaintiff does not reside within the County in which the firm of Adams & Commissiong LLP maintain their office.

The grounds of Affirmant's belief as to all matters in the complaint not stated to be upon his knowledge are based upon conversations with Plaintiff, and a review of records related to this action.

DATED: New York, New York
January 23, 2020



O. Williams Igbokwe, ESQ